



Office of the Sangguniang Bayan

EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE 11TH SANGGUNIANG BAYAN OF PRIETO DIAZ, SORSOGON HELD ON JULY 22, 2024 AT SAN ISIDRO BARANGAY HALL, SAN ISIDRO, PRIETO DIAZ, SORSOGON

PRESENT:

Hon. Avon D. Domalaon, MPA	Municipal Vice Mayor/Presiding Officer
Hon. Jo Madel D. Domalaon	S. B. Member
Hon. Bienvenido D. Ayo, Jr.	-do-
Hon. Luis Lee E. Espeña, Jr.	-do-
Hon. Alice D. Emano	-do-
Hon. Rodolfo E. Diolata	-do-
Hon. Juan D. Ebid	-do-
Hon. Albert D. Destura	-do-
Hon. Joseph H. Yap, Jr.	-do-
Hon. Antonio J. Emano, Jr.	LnB Pres. /S. B. Member
Hon. Rene Joseph D. Domasian	SKMF Pres./S. B. Member

ORDINANCE NO. 2024-03

Introduced by Hon. Albert Destura and Hon. Jo Madel Domalaon

AN ORDINANCE IMPLEMENTING THE ZERO OPEN DEFECATION (ZOD) IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON, IMPOSING PENALTIES FOR VIOLATION AND APPROPRIATING FUNDS THEREFOR

Be it ordained by the Sangguniang Bayan in session, assembled;

The health of the people, being of paramount importance, all efforts of public services should be directed towards the protection and promotion of health. The 1987 Constitution, particularly Section 15, provides that "*The State shall protect and promote the right to health of the people and instill health consciousness among them.*"

Republic Act 7160 otherwise known as the Local Government Code of 1991, likewise accords every local government unit the power and authority to promote the general welfare within its territorial jurisdiction including the promotion of health and safety of its constituents.

The municipality of Prieto Diaz, consistent with its vision of healthy Prieto Diaznon, is vigilant as to the effects of unsanitary disposal of human wastes in health and well-being. Hence, the municipality is committed to implement the Zero Open Defecation (ZOD) policy.

SECTION 1. SHORT TITLE

This Ordinance shall be known as "Zero Open Defecation (ZOD) Ordinance of the municipality of Prieto Diaz."

SECTION 2. COVERAGE

This shall be applicable to all persons, natural or juridical, resident or non-resident within the territorial jurisdiction in the municipality of Prieto Diaz.

SECTION 3. DEFINITION OF TERMS

For the purpose of this Ordinance, the following terms shall mean:

1. community service – refers to the services rendered to the community for public service
2. feces – refers to human waste or human excreta
3. household - a house and its occupants
4. IEC Campaign – refers to Information, Education and Communication Campaign
5. open defecation – refers to the manner of excreting/discharging fecal waste on a place, site or location other than the toilet/comfort room or restroom and leaving it exposed to the environment
6. public places – refers to all places that are accessible or open to the people in a community or places for collective use regardless of ownership which include outdoor spaces for gathering but not limited to playgrounds, public squares or plaza, school grounds, church grounds and the likes
7. sanitary toilets – refers to sanitation facilities or a piece of hardware used for the collection or disposal of human urine and feces
8. Zero Open Defecation (ZOD) – one hundred percent (100%) absence of open defecation practice

SECTION 4. GENERAL ADMINISTRATIVE PROVISIONS

1. The municipality of Prieto Diaz shall provide free toilet bowls provided that as counterpart, the owner shall be responsible in the construction of the toilet and provide other materials needed for its completion.
2. The Municipal Health Office shall conduct regular IEC campaign in the different barangays to prevent the effects of water-borne diseases due to open defecation.

SECTION 5. CREATION OF MUNICIPAL ZOD TASK FORCE AND ITS FUNCTIONS

There shall be created a Task Force to be composed of the following:

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| Chairperson | : Municipal Mayor |
| Vice Chairperson | : Municipal Health Officer |
| Members | : SB Chairperson, Committee on Health and Sanitation |
| | : Rural Health Sanitary Inspector |
| | : SB- Chairperson Committee on Environment |
| | : President, Liga ng mga Barangay |
| | : Representative, MENRO |
| | : Representative, MPDO |
| | : Representative, MSWDO |
| | : Representative, Municipal Engineering Office |
| | : DILG MLGOO |
| | : Representative, Municipal Police Station |
| | : Representative, Municipal Treasurer's Office |
| | : Representative, NGO / GNIP |

1. The Municipal Zero Open Defecation (ZOD) Task Force shall formulate policies and strategies in eradicating open defecation in their respective barangay.
2. It shall validate the written reports submitted by the Barangay ZOD Task Force and submit same to the proper agency for evaluation and appropriate action.

SECTION 6. CREATION OF BARANGAY ZOD TASK FORCE AND ITS FUNCTIONS

There shall be created a Task Force to be composed of the following:

- Chairperson : Barangay Captain
- Members : Barangay Kagawad, Chairperson, Committee on Health
- : Barangay Kagawad, Chairperson, Committee on Environment
- : Sangguniang Kabataan Chairperson
- : Principal or Head of School/s situated in the barangay
- : Barangay Health Workers
- : Barangay Tanod

1. The Barangay Zero Open Defecation (ZOD) Task Force shall inspect, monitor and have a master list of all households and establishment who have and do not have sanitary toilets.
2. It shall monitor and submit a monthly written report on the status of compliance of this ordinance to the Municipal ZOD Task Force for appropriate action.

SECTION 7. MONITORING

The Municipal ZOD Task Force shall conduct a monthly monitoring in the different barangays to ensure the provisions in this ordinance are being complied with by their constituents.

SECTION 8. APPROPRIATIONS

The Local Government Unit of Prieto Diaz shall appropriate P 300,000.00 from its 20% Municipal Development Fund starting year 2025 and every year thereafter for the programs, projects and activities (PPAs) related to ZOD.

SECTION 9. PROHIBITED ACTS

The following acts shall be prohibited:

- 9.1 Open defecation in public places
- 9.2 Throwing, leaving or depositing fecal wastes in public places
- 9.3 Construction of new houses without sanitary toilet

SECTION 10. PENAL PROVISION

Any person found violating Section 9.1 and 9.2 of this ordinance shall be meted out with the following penalties:

- 1st Offense - reprimand and 1 hour community service
- 2nd Offense - a fine of P 1000.00 or 16 hours community service
- 3rd Offense - written notice and a fine of P 2500.00
and subsequent offenses

Any person found violating Section 9.3 of this ordinance shall meted out with the following penalties:

- 1st Offense - reprimand and written notice by the Barangay ZOD Task Force
- 2nd Offense - written notice with 1 hour community service

3rd Offense - written notice and a fine of P 2500.00
and subsequent offenses

The collection of fines will be done by the Municipal Treasurer's Office.

Section 11. IMPLEMENTING OFFICE/S

The Municipal Health Office through the Rural Sanitary Inspector, Municipal Police and the Chairman of Barangay Task Force are hereby directed to ensure the widest dissemination and strict implementation of this ordinance.

SECTION 12. SEPARABILITY CLAUSE

in the event that any part/s or provision/s of this ordinance is held unconstitutional or invalid other part/s not otherwise affected shall remain in full force and effect.

SECTION 13. REPEALING CLAUSE

All other ordinances, or provisions thereof, inconsistent herewith are hereby amended or repealed accordingly.

SECTION 14. EFFECTIVITY

This Ordinance shall take effect ten (10) days after its publication in a newspaper of local circulation in the province of Sorsogon.

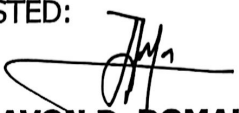
ENACTED: July 22, 2024

Let copies of this ordinance be forwarded to the Sangguniang Panlalawigan through Vice Governor Hon. Krunimar Antonio Escudero Jr.; copy furnished Hon. Romeo D. Domasian, Ph. D., Municipal Mayor; Dr. Jenifer Bernaldez, MHO; Ms. Gemma D. Ferrer, Municipal Treasurer; the Municipal Police Station through its COP PCapt Brian Bea and all concerned for their information and appropriation action.

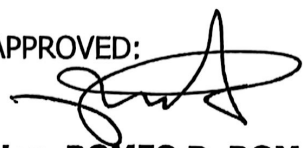
I HEREBY CERTIFY TO THE CORRECTNESS OF THE FOREGOING.


BERNADETTE R. ESPEÑA - YAO
Secretary to the Sangguniang Bayan

ATTESTED:


Hon. AVON D. DOMALAON, MPA
Municipal Vice Mayor/Presiding Officer

APPROVED:


Hon. ROMEO D. DOMASIAN, Ph.D
Municipal Mayor
Date approved: JUL 31 2024



Republic of the Philippines
PROVINCE OF SORSOGON
Sorsogon City



SANGGUNIANG PANLALAWIGAN

SP Building Gov. Augusto G. Ortiz Drive corner Gov. Salvador C. Escudero, Sr. Drive,
Capitol Compound, Brgy. Burabod, East District, Sorsogon City-4700

SEP 16 2024

EXCERPT FROM THE JOURNAL OF THE 111th REGULAR SESSION OF THE 11TH PROVINCIAL BOARD ON AUGUST 27, 2024 AT THE SP SESSION HALL, SANGGUNIANG PANLALAWIGAN BUILDING, GOV. AUGUSTO G. ORTIZ DRIVE COR. GOV. SALVADOR C. ESCUDERO, SR. DRIVE, CAPITOL COMPOUND, BRGY. BURABOD, EAST DISTRICT, SORSOGON CITY.

PRESENT:

Hon. Krunimar Antonio D. Escudero II, Vice Governor/Presiding Officer

1ST DISTRICT

Hon. John Ryan C. Dioneda
Hon. Maria "Nini" O. Ravanilla
Hon. Ralph Walter R. Lubiano*
Hon. Edmundo A. Atutubo
Hon. Rommel John C. Mella

2ND DISTRICT

Hon. Ramil M. Robles
Hon. Juan G. Guysayko
Hon. Benito L. Doma
Hon. Roland R. Afionuevo
Hon. Eduardo E. Ong Jr.

EX-OFFICIO

Hon. Ramon B. Escudero – Provincial President, Philippine Councilors League
Hon. Jose Arturo D. Enano – Provincial President, Liga ng mga Barangay
Hon. Karl Marx H. Lozada – Provincial President, Sangguniang Kabataan Federation
OFFICE of the SANGGUNIANG BAYAN
LOCAL GOVERNMENT UNIT
Prieto Diaz, Sorsogon

*Absent

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RESOLUTION NO. 407-2024

RECEIVED

BY: JOHNNY L. SANILLAN

DATE: 09122024 TIME: 8:50 Am

RESOLUTION DECLARING VALID PRIETO DIAZ ORDINANCE NO. 2024-03, ENTITLED: "AN ORDINANCE IMPLEMENTING THE ZERO OPEN DEFECATION (ZOD) IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON, IMPOSING PENALTIES FOR VIOLATION AND APPROPRIATING FUNDS THEREFOR."

WHEREAS, submitted to the Sangguniang Panlalawigan of Sorsogon was Prieto Diaz Ordinance No. 2024-03 for review and appropriate action;

WHEREAS, the Local Government of Prieto Diaz aims to implement the Zero Open Defecation (ZOD) in the municipality of Prieto Diaz, Sorsogon, and impose penalties against any person, natural or juridical, resident or non-resident violating the prohibited acts of the ordinance;

WHEREAS, the ordinance conforms to DOH administrative Order No. 2019-0054, commonly referred to as the Philippine Approach to Sustainable Sanitation (PhaTSS). The administrative order outlines the guidelines aimed at attaining Zero Open Defecation, as well as promoting access to safe water, enhancing sanitation facilities and encouraging proper hygiene practices in the community;

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WHEREAS, the ordinance is *intra vires* as provided in the Local Government Code of 1991;

NOW, THEREFORE, on motion of Hon. Roland R. Añonuevo, duly seconded by Hon. Maria “Nini” O. Ravanilla, the Board **RESOLVED**, as it is hereby **DONE**, to **DECLARE VALID PRIETO DIAZ ORDINANCE NO. 2024-03, ENTITLED: “AN ORDINANCE IMPLEMENTING THE ZERO OPEN DEFECATION (ZOD) IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON, IMPOSING PENALTIES FOR VIOLATION AND APPROPRIATING FUNDS THEREFOR.”**

LET COPIES of this resolution be furnished Mayor Romeo D. Domasian and the Sangguniang Bayan of Prieto Diaz, Sorsogon for their information and guidance.

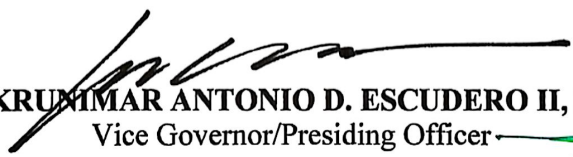
APPROVED.

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I HEREBY CERTIFY to the correctness of the foregoing.


ATTY. RODOLFO C. DEALCA, JR.
Secretary to the Sangguniang Panlalawigan

ATTESTED:


HON. KRUMMAR ANTONIO D. ESCUDERO II, MDMG
Vice Governor/Presiding Officer